

Court No. - 78

Case :- APPLICATION U/S 482 No. - 7074 of 2021

Applicant :- Islam Khan

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Shailendra Kumar Upadhyay, Hari Shankar Tripathi

Counsel for Opposite Party :- G.A.

Hon'ble Shekhar Kumar Yadav, J.

Issue notice to the counsel for the electricity department.

Put up this case as fresh on 22.3.2021.

Order Date :- 18.3.2021

SY

Court No. - 73

Case :- APPLICATION U/S 482 No. - 7074 of 2021

Applicant :- Islam Khan

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Shailendra Kumar Upadhyay, Hari Shankar Tripathi

Counsel for Opposite Party :- G.A.

Hon'ble Sanjay Kumar Singh, J.

Learned counsel for the applicant submits that in view of the provisions provided in para 8.1 (vii) of Uttar Pradesh Electricity Supply Code, 2005 (for short "Code, 2005"), in case of supply from LT line connection, taking of photographs of the spot is mandatory. The procedure provided under the Code, 2005 has not been followed. It is also submitted that in the site plan, no LT Line and Pole has been shown.

Learned Baleshwar Chaturvedi, learned counsel appearing on behalf of Electricity Department prays for and is allowed two weeks' time to seek instruction about the aforesaid submission of learned counsel for the applicant.

List this case on 24.12.2021 before the appropriate Bench.

Order Date :- 9.12.2021

Shubham

Court No. - 44

Case :- APPLICATION U/S 482 No. - 7074 of 2021

Applicant :- Islam Khan

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Shailendra Kumar Upadhyay, Hari Shankar Tripathi

Counsel for Opposite Party :- G.A.

Hon'ble Dr. Kaushal Jayendra Thaker, J.

After this court has shown its disinclination to quash the proceeding arising out of Case Crime No.049 of 2019 pending in Additional Sessions Judge as Special Trial No.5182 of 2019, learned counsel for applicant seeks permission to withdraw this petition. In the meantime, if bailable or non bailable warrant is issued against the applicant, it shall remain stayed for three weeks during which the applicant would move before the Court below for cancellation of warrant, if any, issued by the Special Court.

In view of the above, the present petition is dismissed as withdrawn.

Order Date :- 28.11.2022

Mukesh

Court No. - 44

Case :- APPLICATION U/S 482 No. - 7074 of 2021

Applicant :- Islam Khan

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Shailendra Kumar Upadhyay, Hari Shankar Tripathi

Counsel for Opposite Party :- G.A.

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Order on Criminal Misc. Correction Application No.3 of 2022

1. This is an application seeking correction in the order dated 28.11.2022 dismissing the appeal as withdrawn.

2. The matter has already been decided by this Court at the behest of learned counsel for the applicant. The order shows that the petition was disposed of as withdrawn. The order dated 28.11.2022 reads as under :

"After this court has shown its disinclination to quash the proceeding arising out of Case Crime No.049 of 2019 pending in Additional Sessions Judge as Special Trial No.5182 of 2019, learned counsel for applicant seeks permission to withdraw this petition. In the meantime, if bailable or non bailable warrant is issued against the applicant, it shall remain stayed for three weeks during which the applicant would move before the Court below for cancellation of warrant, if any, issued by the Special Court.

In view of the above, the present petition is dismissed as withdrawn."

3. On perusal of the petition and F.I.R., the undersigned is unable to persuade itself to exercise its extraordinary jurisdiction under Section 482 of Cr.P.C in quashing the First Information Report/proceedings impugned to this petition. The decision **Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra, AIR 2021 SC 1918** will not permit this Court to entertain this petition.

4. In view of the above, this application is dismissed.

Order Date :- 11.5.2023

DKS